REQUEST FOR CLEMENCY FOR MARK JENKINS

In 1991, Mark Jenkins was convicted of killing Tammy Hogeland. For the past 35 years, he has been incarcerated on death row at Holman Correctional Facility in Atmore, Alabama. Mark is distraught by the harm he caused and has spent his time in prison attempting to grow as a person and confront how he ended up taking an innocent life. And his story is unique on death row. Despite one of the most traumatic childhoods imaginable, Mark has garnered tremendous support from correctional officers for clemency—the most correctional officers to support a clemency request in Alabama history. In the words of one officer, Mark is "exceptional."



Mark Jenkins (right) pictured with his brother Michael as children.

Mark's childhood was defined by unrelenting emotional and physical violence. When Mark was four, his grandfather raped him on a camping trip—an act that would be a capital crime in Alabama today. Instead of helping and caring for little Mark, who developed struggles with incontinence and loss of bowel control after that trip, Mark's parents kept him locked in a filthy room, barely fed him, and beat him. More than once, Mark's father forced Mark to eat his own feces.

Mark was also contending with being intellectually disabled, meaning that he did not have the intellectual or adaptive skills to function in the real world as most people can. He had significant limitations in his ability to think through situations and understand what was happening around him. For another child, school could have been a respite from a chaotic home life. But school just brought more difficulty for Mark, as his intellectual and adaptive limitations caused him to flounder both academically and socially.

While enduring horrors at home and trying to cope with his disability, Mark sought closeness and affection wherever he could. He developed a deep love of animals that continues to this day, especially for the pet dogs that lived in his room. They ate, slept, and defecated in Mark's room, but they showed Mark love, and he loved them in return. He also had a deep fondness for and connection with the family's horses.



Mark (right) and his brother Michael on the Jenkins's pet horses, Rusty and Chips.

When Mark was just thirteen, his parents abandoned him to the state. For five years, he stumbled between juvenile group homes, the couches and floors of extended family, and the street. He turned to alcohol and other substances for comfort and to help alleviate his hunger. Eventually, he followed a friend to Alabama.

On the night of April 17, 1989, Mark, who was heavily intoxicated, drove to the diner where Tammy Hogeland, an acquaintance, worked. At around 2:00 am on April 18, Tammy and Mark left the diner together in Mark's car. Sometime after that, they got into an argument, and he strangled her.

Mark's crime was horrendous and indefensible. It was an aberration, driven by circumstances that have radically abated over time. He had no prior history of violence beyond a couple of grade school altercations. And, to the extent that certain long-term effects of trauma from his difficult youth played a role in his murder of Tammy Hogeland, Mark has long since developed healthier ways to cope. A psychologist who evaluated Mark in 2024 concluded that he "shows markedly less impulsivity and instability than he did as an adolescent." The psychologist concluded that Mark's temperament and personality style in adulthood are "prosocial and nonaggressive," and that he has matured out of the trauma- and youth-related developmental psychology factors that likely played a significant role in the offense.

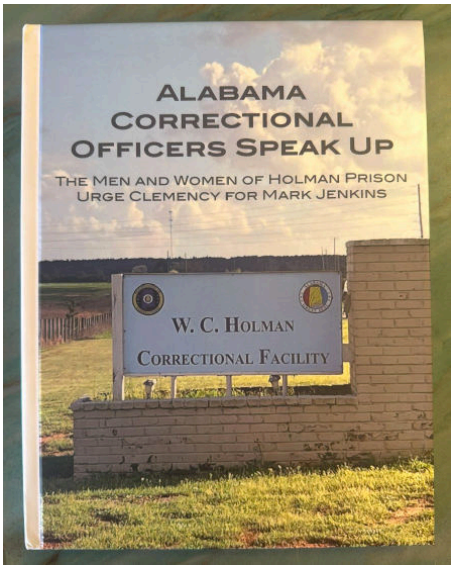
These changes in Mark are largely a consequence of prison providing him with the stability and structure he had never previously had. Before entering Holman Prison, Mark had struggled to navigate the world and lacked stable relationships, employment, and housing. The effects of childhood abuse—he has since been diagnosed with Complex Post-Traumatic Stress Disorder—and intellectual disability were debilitating. Now, although

prison is certainly difficult for Mark, he has the type of structure, sense of purpose, and commitment to Jesus Christ that were previously absent from his life.

Mark has spent the past 35 years trying to spread positivity and warmth and trying to repent for the harm he caused. In prison, he has become a truer version of himself by connecting with God and joining a community that discusses His message. Mark is such an exemplary prisoner that more than 60 correctional officers—many of whom strongly believe in the death penalty—support clemency for him. They know Mark as "peaceful," "trustworthy," and "good-natured." They see that he is a "different person" from the one who entered prison more than three decades ago. These officers know both Mark and the prison system better than anyone else. They understand that he is a "good person who did a terrible thing." Even knowing that Mark has killed someone, they believe that he would pose no threat if allowed to die of natural causes in prison. They believe that he deserves to be spared the death penalty.

"As a member of the clergy, and specifically a retired chaplain from W.C. Holman Correctional Facility, who personally knows and has engaged Mark in many different circumstances over the years, I ask that you please consider the numerous requests on Mark Jenkins' behalf for clemency with thoughtful prayer."

– [redacted][1]



The cover of the book featuring over 60 letters from Alabama correctional officers advocating for clemency for Mark.

[1] The correctional officers who wrote letters supporting Mark's clemency request intended to share their words with the Governor. Some officers have not consented to having their names appear publicly, and so we have redacted the names of those correctional officers in this publicly available petition.

"I am asking that you find mercy for Mark Jenkins in the days that God ministered mercy to you. Matthew 5:7 says, 'Blessed are the merciful for they shall obtain mercy.' God willing, with your power as Governor, as God has shown mercy to you in your life, I ask that you show that same mercy to Mark Jenkins and grant him life. Let him spend the rest of his life in general population."

– Alabama Correctional Officer Freddie Howard (ret.)

This petition, the contents of which were not presented at Mark's trial, shows that Mark is the rare death row prisoner who deserves life without the possibility of parole instead of the death penalty. He should be punished; he has also repented and transformed himself. He humbly asks that Governor Ivey grant him mercy by exercising her clemency power.

Clemency concerns legal proceedings, but it is fundamentally a moral decision. While we trust our judicial process to protect the innocent, the Alabama Constitution empowers the governor to grant clemency to those who, despite having committed a crime, deserve mercy. It is a chance to weigh not just the facts of the case, but also the circumstances of the man asking for mercy. It is an opportunity to show mercy to those, like Mark, who have shown remorse and have transformed themselves.

"Governor, I voted for you and support your work in office. The leaders of our state have said that they care about the voices of correctional officers and that they have our back. Governor, I am hoping you will take the time to consider the letters from all the men and women who worked with me."

- Alabama Correctional Sergeant William James (ret.)

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1. "The officers that I worked with at Holman—the officers who have signed these letters of support—know what they are talking about."

In an unprecedented display of support, over 60 current and retired Alabama correctional officers, along with Holman Prison's long-time chaplain, have written individual letters asking the Governor to grant clemency to Mark Jenkins. Many of these officers support the death penalty and have never written letters like this before. They would not request mercy for just any death row prisoner. But, over the course of decades, they have witnessed firsthand the person who Mark is and the person he has become. The officers' letters—grounded in personal experience with what it means to execute someone and in years of supervising Mark—are a powerful testament to Mark's character and transformation over his 35 years on death row.

> *"I am a lifelong Republican and consider myself a strong supporter of law enforcement. Several members of my family are in law enforcement. I believe in law and order, and consider myself tough on crime. Mark obviously did a very bad thing, a terrible thing. But his character and the way he handled himself at Holman were exceptional. I would go to bat for Mark, I surely would. And I don't do that lightly. I would definitely not go to bat for any inmate, but Mark was a truly model inmate."*
>
> – Alabama Correctional Officer Kevin Boughner (ret.)

During his decades on death row, Mark has been an excellent inmate, leading with kindness and care in an unforgiving environment. One correctional officer who worked at Holman Prison for nearly 20 years recalled of Mark, "Every time I walked by his cell, he asked me how I was doing. Out of all the inmates, he was the only one to ever ask me that. He always treated me like he was concerned about me as a person." Another officer remarked that "death row inmates don't have anything to lose, they aren't getting out. But Mark didn't let that stop him from behaving right and being respectful and doing his best to be a good inmate. He made the decision every day to be polite and respectful." A correctional sergeant who was twice pregnant while working on death row remembered Mark as someone who was attentive to her pregnancy: He "tried to take care of me and look out for me as much as he could."

Mark's gentle presence and calming influence—rooted in his deep faith in Christ—help make death row a more tolerable and peaceful, and therefore safer, environment for the officers who work at the prison. According to the prison's retired chaplain, Mark has formed "a sincere commitment to Christ." Mark's relationship with God sustains him, and he works to reflect Jesus' love and compassion in his daily life. Officers described him as "calm" and "easy-going"—a "peaceful spirit" who "got along with everybody," and who was "such a gentle person for the decades I knew him." An officer who knew Mark for almost 20 years noted Mark "really was a great presence for officers and inmates" who "avoided conflict and was able to de-escalate any situation if someone else was getting heated." The officer explained: "Mark brings an atmosphere of peace to a very, very violent world. . . . When things are going crazy and haywire, Mark will be a voice of reason."

That same steady presence earned Mark the trust and confidence of the Holman officers, who entrusted him with the responsibilities of serving as a hall runner. Hall runners support the officers by helping with simple tasks like getting files for officers or passing out food trays. According to veteran correctional officers, serving as a hall runner involves more freedom within the prison and is therefore a special privilege reserved for "the best inmates." Mark was chosen for this role "because the correctional officers could trust him to behave." "People who stay as hall runners for long periods, like Mark, [are] special inmates," explained one retired officer.

"Even among the trusted hall runners, Mark Jenkins stood out," an officer recalled. "Mark was great . . . a very hard worker [who] always did what we asked of him," noted the lieutenant who first selected Mark to be a hall runner. "Mark earned my trust." Another officer elaborated on how Mark helped the prison run more smoothly: "Holman prison was pretty old, so sometimes we had problems with rats or things like that. Whenever we had a problem like that, we could rely on Mark to take care of it. Mark would do what we needed him to do, whether that was painting something that needed painting, or bringing food to other inmates." He made the officers' jobs, and their lives, easier. As one officer who

worked for ADOC for 30 years put it, "Mark was our ears and eyes about what was going on in and out of the tier."

Mark's praiseworthy conduct over so many years helps explain why more than 60 correctional officers agree that Mark would do well in the "general population" section of prison, where he would spend the rest of his life if granted clemency. As one officer put it, "I do not think that Mark was any kind of threat to anyone in prison, and I do not think he would be a threat to anyone in general population." A psychologist who recently evaluated Mark agrees that he is "at very low risk of perpetrating violence at this point in his life, and he is at low risk of engaging in serious violent acts in prison, even if he is moved off of death row into general population."

Mark is still someone who committed a horrific crime, and there is no question that he must live out the rest of his days in prison as punishment. No one denies that truth. But, as the numerous correctional officers who have known Mark over the decades have made clear, Mark is not the same man he was at 21. He has transformed his life in ways that warrant clemency.

> *"I knew hundreds if not thousands of inmates over the course of my career at ADOC. Mark is one of the very, very few inmates I would speak on behalf of. He stands out to me from among almost every other inmate I knew in the Alabama prison system. Most of them I would not recommend clemency for . . . If Mark was not on death row, I would never have known what his crime was. Nothing about him - and I knew him very well for many years - suggested to me that he was a violent or dangerous person in any way."*
>
> – Alabama Correctional Lieutenant Michael Scott Everette (ret.)

2. <u>Throughout a uniquely horrific childhood, Mark turned the other cheek.</u>

Mark's transformation into the man correctional officers see today is all the more profound when viewed against the circumstances of his childhood—a childhood in a "house of horrors," marked by extraordinary violence, abuse, and instability. A trauma psychologist who evaluated Mark, his records, and witness statements commented that Mark's childhood "traumatic experiences are striking, even compared to . . . other individuals . . . in capital proceedings."

Mark was rejected by his family from the day he was born. His mother, Donna, abused drugs and alcohol when pregnant with him. Mark was the product of an affair—Donna had conceived him while her husband, Steve Sr., was in prison. Mark's stepfather, Steve Sr., was very possessive over Donna, and neither Donna nor Steve Sr. wanted any reminder of Mark's parentage. As such, immediately after Mark was born, Donna put Mark

up for adoption. Mark remained in the hospital for weeks until Donna retrieved him, relenting to pressure from her mother and sister. Donna would later say that taking Mark back was the worst decision she had ever made.

Donna had depended on Steve Sr. for income before his arrest, and the family was desperately poor in the years when he was in prison. One family member initially sent money for Donna and the kids but stopped after learning that Donna was spending it all on "drugs and alcohol binges." She was generally either drunk, passed out or sick from a hangover when she was home with the children. She rarely bought diapers for Mark and either used paper towels or let him sit in soiled diapers for long periods. She frequently got mad at Mark, just an infant at the time, and would "shake him and throw him on the bed" or smack him, leaving welts that "wouldn't go away for a long time."

Donna did not hide her disdain for Mark. "Once in a while, [Donna] told me she loved me," Mark's brother Billy recalled. "That was the difference between Mark and me from the time we were very young. Our mom never told Mark she loved him." She frequently told Mark and anyone else willing to listen that "if it wasn't for him, she could have a decent life."

A) No one stepped in as Mark suffered extreme abuse.

Steve Sr. was released from prison when Mark was three, and Mark's situation at home worsened. As Mark got older, it became clear because of his dark skin—attributable to his Hispanic biological father—that Mark was not Steve Sr.'s biological son. Billy, Mark's younger brother, explained that "Mark's existence was a constant living reminder of what Steve Sr. hated the most, Donna's infidelity." Steve Sr. "hated Mark because of that, and he punished Mark for it." Mark's parents belittled him, shunned him, and barely provided the basic level of care needed to keep him alive.

At age four, Mark was raped by his grandfather on a camping trip—an act that would now be a capital crime in Alabama. Mark's grandfather was a serial child rapist who had sexually abused his own children. Mark's reaction made clear that something terrible had happened to him on the trip. Steve Sr. told family members that he came back from hunting to find Mark crying in the corner of the tent, with feces everywhere and his grandfather nowhere to be found. Before the trip, Mark had been fully potty-trained. Afterward, he was incontinent. He had bowel movements in his pants frequently and urinated in his bed almost nightly.



Mark, age 4, on the camping trip he took with his father and grandfather, shortly before his grandfather raped him.

Instead of getting their young child help and support, Mark's parents beat him when he had an accident to teach him not to "shit [his] pants." Mark was scared to fall asleep at night because he knew he might accidentally urinate or defecate in the bed. When he did soil his bed, he awoke, panicked and afraid, knowing Steve Sr. was going to beat him. And whenever Mark tried to cover up evidence of his bedwetting accidents, Steve Sr. beat him even more for lying.

"Everything in Mark's room stunk," Mark's cousin recalled. "After a shower, Mark put on soiled clothes or slept in soiled sheets." Sometimes, Donna and Steve Sr. came into his room and taunted him, calling him "pissy pants." Other times, Steve Sr. forced him to wear a diaper around the other children to "humiliate" him. Steve Sr. did this even when Mark was far too old to wear diapers—one cousin remembers him wearing them when he was ten. Sometimes, when Mark had an accident, his father hung the dirty sheets outside on the front fence, which Mark's classmates saw as they walked by on their way to school. Other times, Steve Sr. forced Mark to wear his soiled underwear wrapped around his face.

Donna and Steve Sr. frequently forced Mark to sit on the toilet for hours at a time because of his incontinence. "He watched the kids run through the house playing but he was not allowed to join us because our parents made him sit on the toilet," recalled Billy. "He looked so sad."

Mark's parents also beat him nearly every day by the time he was five. He was sometimes stuck in bed with injuries for days after those beatings, but his parents did not seek medical care for him. Instead, Steve Sr. sometimes came into the room where Mark was recovering to hit him even more.

Steve Sr. beat Mark with a fly swatter, a horse whip, steel rods from Steve Sr.'s welding job, a tree branch, the back of his hand, his fist, a shovel, and a belt buckle. Sometimes, Steve Sr. kicked Mark. Every time Mark squirmed, or flinched, or rolled over to protect one side, Steve Sr. beat him harder because Mark could not "sit still." As he beat Mark, Steve Sr. called him "Mexican trash," "shit bastard," or "Puerto Rican puke." In response, Mark whimpered, "I love you," over and over again.

Michael, Mark's brother, explained that their parents treated Mark not like a child but instead "like an animal." Mark's cousin Tammy, who lived with Mark's family for around two decades, reported that Mark's parents often locked him in his room and rarely allowed him out to bathe, play, or even dine with the family. Mark tried to find solace and companionship in the family dogs that shared his room. Sometimes, when the other children were done eating, they opened the door of Mark's room and threw their leftover food at him. "We would say, 'Here, you little human garbage pail—you piggy,'" recalled Tammy. "He would leap at the food. Donna would see it and she wouldn't do nothing about it. She thought it was funny."



Mark (right), pictured with his younger brother Billy in a family portrait. This is one of the few family photos with Mark in it.

Nobody intervened to help Mark or to stop the abuse. Mark's family moved homes and towns often, largely due to evictions, perhaps making it difficult for some adults to pick up on indications of problems at home. Still, Mark's teachers missed obvious signs or did not adequately act on the signs of problems they saw. He went to school in filthy clothes. One school nurse saw Mark several times, including for a "badly infected finger" and a high fever that went untreated. She noted that Mark "fears getting into trouble for seeking care." She referred his case to Chino Youth Services and called his mother several times. A month later, the school sent him home after discovering a rash. Again, the nurse noted that Mark "stated he would get into trouble for being in the nurse's office." One month later, she noted that he was "frequently unkempt." Still, neither she nor any of Mark's teachers did anything further to check whether Mark was safe at home.

Only three of Mark's family members called Child Protective Services (CPS) over the years: Tammy, Mark's aunt Sharon, and his older brother Michael. Tammy and Sharon called around the same time. After those calls, authorities arrived, handcuffed Donna, and placed her in the back of a police car. Steve Sr. came home from work and talked to the police officer. "The next thing you know," Tammy recalled, "Donna is being taken out of the car and handcuffs taken off." Michael, Mark's brother, was sixteen when he called CPS. Officers came out to the house, but they quickly left. Afterward, Steve Sr. told all his children that he would "kill" them if "anything like that" ever happened again. They believed him.

Steve Sr. often boasted to a neighbor, Jerry Tindell, about the ways he brutalized Mark. "The way Steve talked about Mark, it sounded like he relentlessly punished him," Jerry recalled. "I got the sense he never let up on him." Steve Sr. even told Jerry that he forced Mark to eat his own feces out of a toilet bowl. To this day, Jerry regrets not doing anything at the time to try to help Mark. "I believe Mark would've had a different life had he had a different upbringing."

Betty Delavega, Donna's cousin, brought her husband and four children to stay with the Jenkins family for a short time in 1977. During those weeks, Steve Sr. did not hide the abuse from Betty, but rather he reveled in it. His "favorite thing to do" was to smack Mark in the back of the head. Betty remembered that one day, Steve Sr. called everyone in the house into the living room. When she walked in, Steve Sr. was standing in front of Mark, who was holding a pair of underpants with a bowel movement in it. Steve Sr. handed Mark a spoon and said, "Now, eat it." Betty remembered that Steve Sr. "didn't have to hold him or anything." Mark knew he had no choice but to do what his father had commanded. Mark took the spoon and ate the feces out of the underwear. There were about ten people in the room, including four adults. Mark was about eleven years old.

Decades later, Betty testified at a post-conviction hearing in Mark's case. After she relayed her story, a lawyer asked if she called the police, or even just another family member. "No," she responded. "I just wanted to get out of there."



Mark, sitting on the floor at a family gathering at his grandmother's house. Her house was one of the few places where Mark could be a kid.

B) Mark had to contend with intellectual disability on his own.

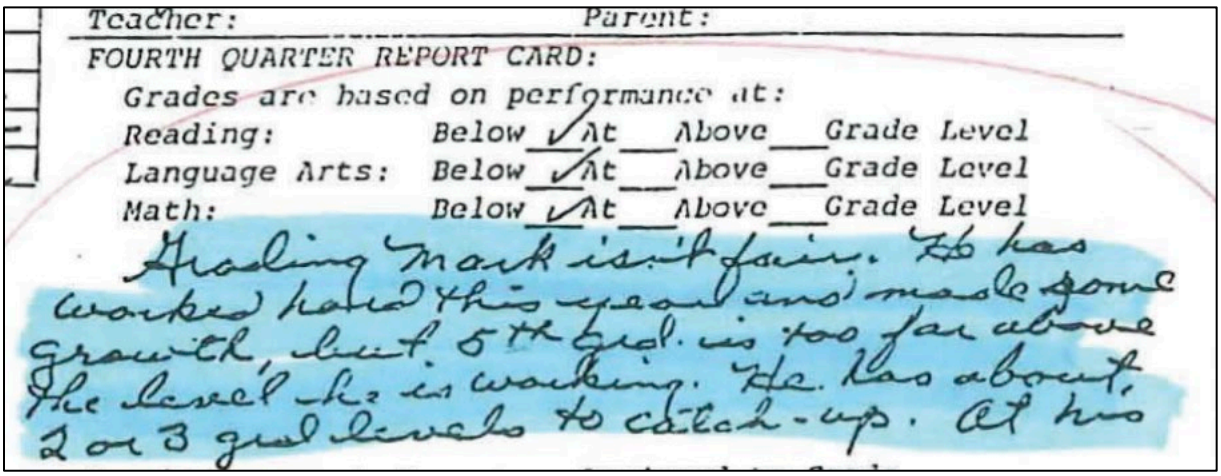
Even though Mark showed clear signs of intellectual disability—a serious neurodevelopmental condition—from a young age, his parents did not help him. They neglected his obvious struggles and interfered when school staff attempted to get him evaluated. As a consequence, Mark was never properly diagnosed as a child. Instead of receiving the support he needed, he floundered.

There is no way of knowing the cause of Mark's intellectual disability. But he was exposed to alcohol and drugs in utero: Donna "did a lot of boozing and a lot of pills" during her pregnancy with Mark. He was born prematurely, and his birthweight was documented as five pounds, one ounce—in the bottom two percent of male infants for birthweight. Mark also did not grow at the rate expected during infancy.

The adults in Mark's life knew that something was wrong with Mark from when he was very young. His grandmother observed that, as a baby, he was "very slow." While "most babies have energy and can scream," Mark "didn't do anything." Throughout Mark's childhood, adults—from his teachers, to mental health professionals, to his probation officer—frequently commented on Mark's immaturity and impulsivity, which, when considered in conjunction with Mark's other difficulties, are associated with intellectual disability.

One of them, fifth-grade teacher Patricia Gross, remembered Mark as "a sweet boy" who "slipped through the cracks." Mark's grades steadily fell, from Cs to Ds to Fs. By the end of the semester, Gross gave up trying to grade Mark. "He was flailing so much academically that there was no point in giving him letter grades," she recalled. When she submitted his report card to his parents, she added a note: "Grading Mark isn't fair." Fifth

grade was "unequivocally too advanced" for him. Gross requested a conference with Mark's parents and noted that he should have been referred to a special education program. But he was never enrolled. Even though she taught him for only one school year, Gross never forgot Mark. In a career that spanned 30 years of teaching, she "had few students who struggled the way Mark did."


Teacher: Parent:
FOURTH QUARTER REPORT CARD:
Grades are based on performance at:
Reading: Below ✓ At ___ Above ___ Grade Level
Language Arts: Below ✓ At ___ Above ___ Grade Level
Math: Below ✓ At ___ Above ___ Grade Level
Grading Mark isn't fair. He has worked hard this year and made some growth, but 5th grad. is too far above the level he is working. He has about 2 or 3 grad levels to catch-up. At his

Part of Mark's 5th grade report card, where teacher Patricia Gross wrote, "Grading Mark isn't fair . . . He has about 2 or 3 grade levels to catch up."

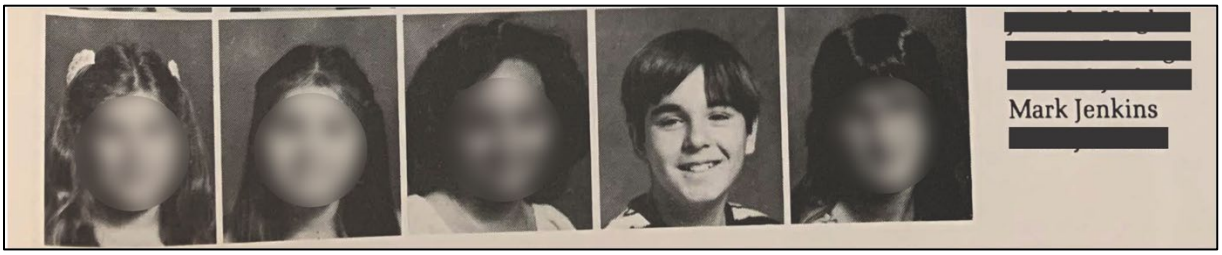
Mark's academic troubles continued throughout middle school. After one three-week absence from school, teachers called home. Donna told them that her son "ran away." The school sent a letter to Mark's parents, warning that if "further truancies of this sort occur," they would refer Mark to the School Attendance Review Board, which would investigate the family. But again the school neglected to follow up: No investigation ever occurred. Instead, Mark failed to pass the seventh grade.

Despite his inability to finish middle school, when Mark switched schools, he was enrolled in ninth grade. He continued to struggle as a high schooler before dropping out. He never made it through tenth grade.

Mark stumbled through his childhood without receiving any support for his intellectual disability. Although at least one school attempted to test him after a teacher noted that he should be placed in a special education program, Donna and Steve Sr. moved the family to a different school district before the tests could be completed. One former special education teacher from Mark's school district opined based on her review of his school records that Mark "quite likely had an intellectual disability" that would have qualified him for an Individualized Education Program. She also noted that his records suggested he struggled to "explain or produce . . . thoughts on paper," he "had difficulty understanding directions that were given to him orally," and he possessed poor communication skills that "likely made learning in a general education classroom

environment very difficult for him." A neuropsychologist who later evaluated Mark concluded that out of 100 randomly selected peers, Mark's "ability to plan, adapt, adjust, and have insight into his behavior is likely to be more impaired than every other person in the room."

School merely emphasized Mark's difficulties and profound aloneness. He had trouble socializing with other children and failed to form connections. He was "shoved away" by his siblings and all the other children around him. He had no one to play with. He jumped if people made quick movements around him and flinched whenever he heard loud voices. He was scared all the time. Any child would struggle to process the physical, emotional, and sexual abuse that Mark experienced. But Mark was a child with intellectual disability, one who had no friends or reliable adults in his life. His deficits left him particularly vulnerable to the traumas he faced. There was no place where he felt safe, and there was nobody who protected him. In the words of his grandmother, without adults who wanted to and were able to intervene, Mark "never had a chance."



Mark, second from right, in his sixth-grade yearbook photo. Nearly all photos of Mark are official school photos because his parents seldom took photos of him.

C) In spite of everything, Mark remained a loving child.

Despite enduring this cruelty and neglect, Mark remained "gentle and caring" with a "good heart." He was protective of his siblings, even as they joined in his torment. A family friend at the time called him "very soft-hearted." Mark's grandmother described him as "timid, shy, and a 'runner' not a fighter." A cousin described Mark as "a sweet child" who had "so much love in his heart."

Mark was desperate to please others. He was "always helping me and making me feel good," his older brother Michael remembered. But Michael and the other Jenkins children, who were scared of their father, often used Mark as a scapegoat. "Whenever we did anything wrong, we would blame Mark," Michael recalled. Instead of getting angry, Mark told his siblings that it was okay. "He knew he would be punished for everyone's sins, so he figured he might as well try to protect the other kids from getting blamed and beaten," Billy explained.

Mark also deeply loved the family pets. He slept in a back room with Droopy and Boots, the family dogs. The dogs received more affection, and often had better living conditions, than Mark did. Sometimes, he was relegated to the bedroom floor because he had urinated in his sleep the previous evening. Every night—including those nights—the dogs got to sleep on the bed. But Mark was not jealous of the dogs. Droopy and Boots loved Mark, and he loved them right back. Some nights, rather than save food for Mark, Donna threw away the leftovers. Mark waited until the family fell asleep and then snuck outside to dig through the garbage cans for food. He shared whatever he found with the two dogs.





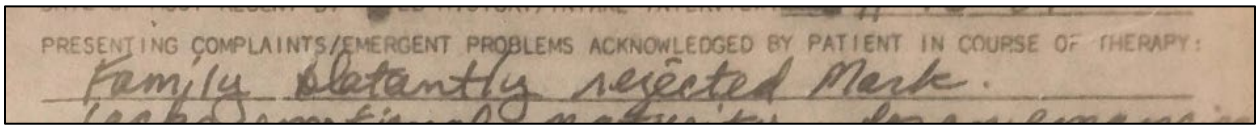
Rusty, a family horse, and Boots, a family dog. Mark frequently recalls the Jenkins's pets as his "real family."

At various points, the Jenkins family also owned horses, chickens, and pigs. Mark's childhood job was to clean the three horse stalls, the chicken coop, and the pig corral. Although the work was hard, and Mark was the only child made to do most of those chores, he was glad to do it. He played constantly with the family's pig, and as it grew bigger, he and his younger cousin sometimes rode it. Mark "raised" the pig and "cared deeply about it." When Steve Sr. slaughtered the pig, Mark was devastated: It was one of the few friends he had. To this day, Mark still refers to the Jenkins's animals as his "real family" and loves animals deeply. One correctional officer recalled, "Mark was always curious about my pets and would talk about the ones he had growing up. It was clear Mark loves animals."

Mark remained hopeful that his parents might eventually accept him. He dreamed of having parents who loved and welcomed him. But it was so foreign a concept that he asked his cousin, Kimberly Fawcett, how she got her mother to love her and why his mother did not feel the same about him. "He could not understand why he was the only kid in the family who was treated as an outcast," Kimberly recalled—"as trash."

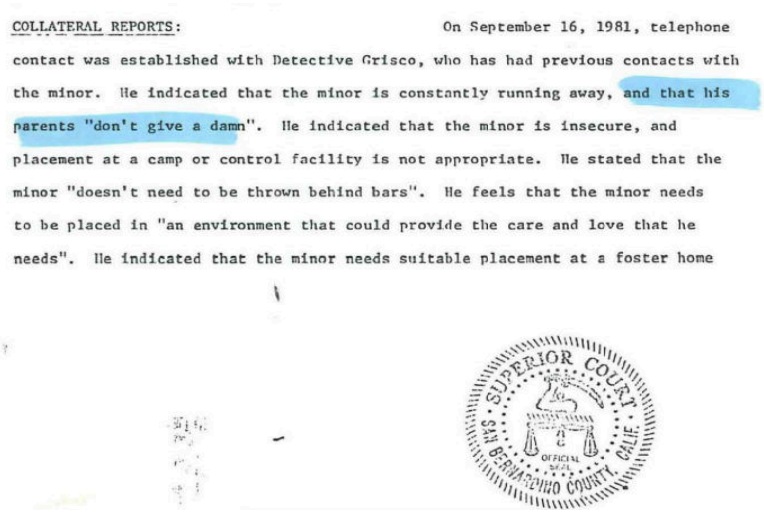
3. Mark was abandoned by his parents and spent the rest of his childhood homeless.

Mark's parents abandoned him to the State of California when he was thirteen, leaving him to struggle through his teenage years often on his own. But the state failed Mark, too. As a result, he spent ages thirteen to eighteen drifting between group homes, neighbors' and family members' couches, and the street.


PRESENTING COMPLAINTS/EMERGENT PROBLEMS ACKNOWLEDGED BY PATIENT IN COURSE OF THERAPY:
Family blatantly rejected Mark.

A therapy intake form from November 13, 1981. Mark was fourteen years old.

A few months after turning thirteen, Mark could no longer bear Steve Sr.'s brutality and fled the Jenkins home. He had run away for short spells before and, this time, he stayed briefly at the home of neighbors Jerry and Toni Tindell. One evening, he attempted to steal the Tindells' car. He was arrested and sent to juvenile hall. Both the Tindells and a detective involved with the case asked that Mark not be punished. Mrs. Tindell asked that Mark be helped, saying that he "ha[d] had enough punishment" from his dysfunctional home life. The detective told the San Bernardino Superior Court that Mark's parents "don't give a damn," that Mark "doesn't need to be thrown behind bars," and that he should be placed in "an environment that could provide the care and love that he needs."


COLLATERAL REPORTS: On September 16, 1981, telephone contact was established with Detective Grisco, who has had previous contacts with the minor. He indicated that the minor is constantly running away, and that his parents "don't give a damn". He indicated that the minor is insecure, and placement at a camp or control facility is not appropriate. He stated that the minor "doesn't need to be thrown behind bars". He feels that the minor needs to be placed in "an environment that could provide the care and love that he needs". He indicated that the minor needs suitable placement at a foster home

SUPERIOR COURT SAN BERNARDINO COUNTY, CALIF. OFFICIAL SEAL

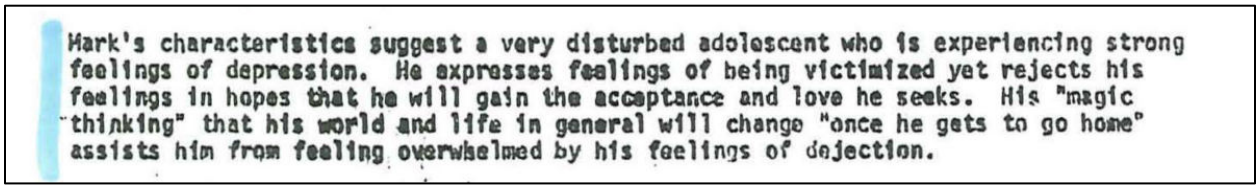
A juvenile incident report from September 21, 1981.

Mark was released from juvenile hall in April 1982 and returned home on a "trial detention." The first month was relatively stable, and Donna remarked that Mark was doing well at home and attending school. However, after just one month at home, Steve Sr.

threatened that "he was going to beat [Mark's] ass," and Mark fled once again. When later asked, Donna said that she could not figure out why Mark would have left home.

From there, Donna and Steve Sr. refused to allow Mark to return home, requesting instead that the state keep him. Just after Mark's fourteenth birthday, he was declared a ward of the court. Over the next four years, largely because he had nowhere else to go and nobody to take him in, Mark spent 579 days in group homes and juvenile detention facilities. In all that time, Mark's parents did not visit him once.

Despite his parents' emotional and physical violence, Mark continued to seek their love. He was desolate when they did not visit. He attempted suicide twice while in care. A trauma psychologist who evaluated Mark in 1996 noted, "[i]t is apparent to the interviewer that Mark is actively seeking support and love from whatever source he can attain it from." A juvenile hall psychologist expressed "grave concern" for Mark's emotional wellbeing and noted the need for both immediate intervention and long-term treatment. He never received it.


Mark's characteristics suggest a very disturbed adolescent who is experiencing strong feelings of depression. He expresses feelings of being victimized yet rejects his feelings in hopes that he will gain the acceptance and love he seeks. His "magic thinking" that his world and life in general will change "once he gets to go home" assists him from feeling overwhelmed by his feelings of dejection.

A 1981 psychological report for Mark's Probation Officer. The psychologist noted elsewhere that Mark said his biggest "wish" was to be able "to stay home."

When Mark was not being held at state-run juvenile facilities, he stayed with relatives or lived on the street. He slept behind liquor stores and on park benches, and he was hungry for days at a time, surviving off of stale bread. He became addicted to speed, cocaine, and meth, among other substances—all helped quell his appetite.

Throughout that time, Mark struggled to accept that his parents had abandoned him and kept trying to return home. When Mark was fourteen, he briefly moved in with Doris Wagner, his grandmother. "By the time I got Mark, he was terribly mixed up," Doris recalled "He was terribly obsessed with making his mother accept him. He even asked me if I would take him to court and have the judge order his mother to accept him."

Mark's last stay within the state system occurred in 1983, when he was sixteen. A little more than a month after Mark arrived at the group home, he disappeared. It took workers at the state facility four months to notice and report his absence. Meanwhile, Donna began to extort $50 a month from Mark in return for not telling his probation officer that he had run away from home.

By the time Mark turned eighteen, he had already spent four years struggling to survive largely on his own. He entered young adulthood severely ill-equipped to navigate his increasing responsibilities. He was overly trusting and easy to take advantage of. In 1985, Mark was working sporadically on the docks in San Pedro, California, struggling to stay afloat and meet Donna's demanded monthly payments.

Still, Mark clung to the hope that he could turn his life around. Like many young men, he saw joining the military as an opportunity to improve himself while also serving his country. He also knew that his biological father, whom he wanted to emulate, had been in the Navy. Mark tried to enlist soon after his eighteenth birthday and was given a written admission exam that the recruiter suggested would only take a few minutes. However, as Mark struggled to read and did not understand concepts such as basic fractions, he bombed the exam and could not enlist.

4. <u>Mark moved to Alabama for a fresh start.</u>

A few years later, Mark saw another chance to change his life—to escape from the hopelessness and isolation—and he tried to seize it. Mark was 20 when he met Lonnie Seale. Both were working at a service station in Fontana, California. Lonnie immediately noticed the younger man, who stood out for two reasons: his "extreme lack of self-confidence," and the fact that he was being exploited. Mark was working fourteen-hour days on menial tasks in exchange for living in a small shack behind the garage.

"I got the impression that Lonnie was one of the first people who was kind to Mark," Lonnie's wife, Shari, later commented. Mark never forgot Lonnie's kindness. He called Lonnie his "big brother" for years afterward. When Lonnie and Shari decided to move to Alabama, they convinced Mark to help them move across the country. As with his failed attempt to enlist at eighteen, he thought this was his chance for a fresh start.

Once in Alabama, Mark found a low-paying job in another garage, again doing menial tasks. During that time, Mark lived with the Seales in their trailer home, giving the meager income he made to the family for rent. Lonnie remembered Mark continuing to act as if he were a guest in their home, doing things like asking if it was okay to fill a glass of water from the tap. Shari recalled that he turned over nearly his entire paycheck to the family and, each time, apologized for taking money for cigarettes. "Mark always thought of everybody else before himself," she said. Years later, Shari recognized that Mark "bent over backwards to help anyone he could because he was desperate for someone to care about him."

Mark's selflessness extended to the Seales' children, for whom he often bought toys "whether he had money to buy something for himself or not." He spent Christmas morning with the Seales so he could see the children's reactions to the presents he had bought them.

Shari also trusted Mark to watch her children when she or Lonnie could not, because she "knew [her] kids were safe with him."

But many of the same struggles that had affected Mark as a child continued to plague him. Shari noticed that Mark was "slow" and figured he had "some kind of mental disability." She described him as immature, a "child in a grown man's body." Mark tried his best to help with basic household chores, but Shari often had to help him. He could not even do something as straightforward as retrieving a can of dog food without step-by-step instructions: "I had to explain how to find the dog food as if Mark was a young child." She also had to help Mark fill out a job application because of his difficulties with reading and writing.

The mobile home that Mark stayed in with the Seales had two bedrooms: one in the front and one in the back, near the bathroom. When Shari was about to give birth to her second child, she asked Mark to swap rooms so she could be closer to the bathroom. Even at 21, Mark still struggled with incontinence, a lasting effect of being sexually assaulted as a young child. He was so afraid to sleep in a bedroom without a nearby bathroom that he instead moved out of the Seales' home.

After Mark left the Seales' home, he began to spiral. He and another man shared a "small and run-down" shack that lacked electricity, and Mark became "a daily drinker," consuming "up to a case of beer and a fifth of vodka in the evening." He was overly trusting and easily manipulated. He was taken advantage of "all the time" at work by people he thought were his friends. In addition to being forced to work extra hours by his employer, Mark "got paid a lot less money than he should have gotten," Shari explained. "There were times people would ask for help, and he would end up doing the whole job."

5. <u>Mark took an innocent life and has ever since been overcome with remorse.</u>

On Monday, April 17, 1989, Mark drank several beers and a bottle of wine. Around 1:00 am on April 18, he went to his car, falling down a flight of stairs on the way. Mark drove to the 24-hour diner where Tammy Hogeland worked, hitting a parked car during his drive. He had visited this diner in the past and had gotten to know Tammy and some of the other waitresses. Around 2:00 am on April 18, Tammy left the diner with Mark and got in the car Mark was driving. Sometime in the early hours of April 18, Mark and Tammy got into an argument in the car. During that argument, Mark strangled Tammy.

Mark was horrified by his actions and consumed by remorse. In the years right after his crime, Mark wept throughout an intake interview with a prison psychologist, repeatedly said that he "wanted to die," and attempted suicide twice. Another psychologist noted that Mark presented as a "very sad, tearful, sometimes sobbing young man." A parole officer

preparing a report for Mark's sentencing noted that Mark "blamed no one but himself" for what he did to Tammy.

To this day, Mark thinks about Tammy Hogeland daily and remains appalled by what he did to her and her family. Mark's cousin Kimberly Fawcett has spoken to him frequently over the decades. "He has told me again and again that he feels terrible about the pain he caused [Tammy] and her family," she said. "He knows that nothing he does now can undo that pain." Mark's brother Billy echoed Kimberly: "Mark did a terrible thing and he knows what he did was terrible. He knows there is no excuse and he knows he has to be punished." "Every time we speak, he tells me how sorry he is," his aunt said. "He truly feels it."

A psychologist who evaluated Mark noted that he "consistently expressed a degree of remorse and guilt that is highly unusual in my experience." He struggled to receive praise from others about good conduct or character because he felt unable to reconcile this praise with the crime he had committed. In Mark's words to that psychologist: "I hurt another family. I took the life of a beautiful person. . . . I took a life and I cannot give it back. I would give my life to give it back."

Mark's remorse has likewise been clear to the correctional officers at Holman Prison. Mark "never pretended he hadn't committed a crime, and he took accountability for his actions from the beginning. He expressed remorse and showed that he wanted to make himself a better man than he was when he committed his crime." Mark "behaved in a way that showed his remorse every single day." As one officer explained, "When you interact with people as much as we interacted with the inmates, you can get a sense of how they're thinking and feeling. Mark regretted what he had done. He felt deep remorse for his crime."

> *"Mark felt terrible about his crime, but he could not undo what he had done—he could not bring that light back. But he strived to do better and make up for what he had done, and I believed he asked God for forgiveness."*
>
> – [redacted]

6. <u>"Mark Jenkins gave his life to Christ several years ago."</u>

It was when Mark was at his lowest point—grappling with the horrors of his actions and his profound remorse—that Mark found Jesus. At Mark's request, soon after his arrest he was baptized in the county jail with a cracker and grape juice, solidifying his commitment to God. At that moment, Mark "accepted Jesus into his life and accepted God's grace for himself."

This was the start of Mark's personal growth. Religion had never been a part of the Jenkins household, so Mark first encountered Jesus when he was thirteen. He was living in juvenile hall and found out that his parents were refusing to take him home. Distraught, he wandered into a service offered by a pastor who ministered to the young boys. There, Mark heard John 3:16, and he began to cry. For the first time in his life, Mark felt entirely safe and loved. Sometime later, he asked his grandmother about the experience. What was the thing that had made him feel so good? She replied, "That's Jesus, he's the son of God."

For God so loved the world that he gave his one and only Son, that whoever believes in him shall not perish but have eternal life. – John 3:16

Although Mark had first felt the power of Jesus' love at thirteen, Mark did not truly find Him until prison. Mark spent his teenage years struggling to navigate his family's trauma and abandonment—simply trying to survive—and did not have the resources or exposure to explore a relationship with God. But since Mark's imprisonment, he has been able to grow in his faith and into the Christian man he is today. Although Mark has cognitive limitations and cannot, for example, deliver a sermon, Mark spreads Jesus' love in all the ways he can. He discusses the Bible with close friends and family, and he works to lead through his faith by example.

As the former chaplain of 25 years at Holman Prison remarked, "today Mark is not the same person he was thirty years ago." In prison, Mark participates in a morning Bible study group with his fellow inmates. One former correctional officer recalled that Mark "participated in all the religious programs that were available" and "would go to Bible study and to service regularly." Another recalled that "when it was time for Church service, it was like clockwork. [Mark] would get his Bible and be on his way straight away."

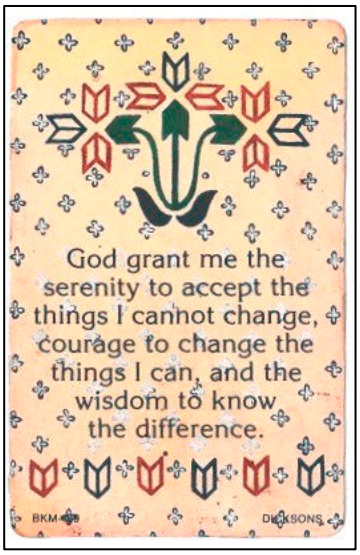
"Over the years since Mark gave his life to Christ, I saw a changed man in behavior, humility, as well as a growing desire to know more about Christ . . . Armed with a desire to become more than a taker, he has been a contributor to the betterment of his carceral community. If given the chance, I do believe he would greatly contribute to and personally grow in population with a sentence of LWOP."

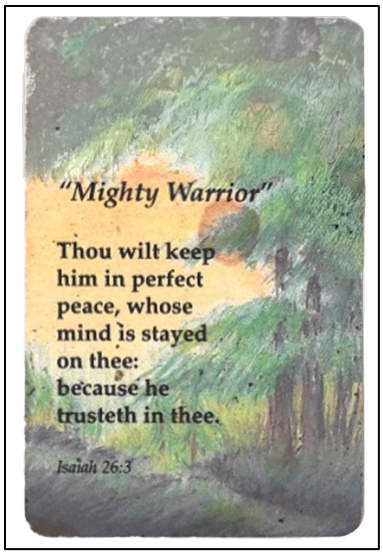
– [redacted]

Mark works hard to study God's message and teachings, and he has been transformed by the Gospel. He knows that nothing can bring Tammy back, but he remembers her and prays for her family every day. Additionally, Mark's faith has helped him navigate recovery from addiction. With three other men, he discussed "The Recovery Bible," a recovery program that integrates the 12-Step program with faith and scripture.

"Therefore he is able to save completely those who come to God through him, because he always lives to intercede for them." – Hebrews 7:25

According to Mark's spiritual advisor, Mark "has asked God for forgiveness for his crime, but he has never been able to forgive himself." Mark's crime tears at his soul, but he has accepted Jesus Christ into his life, and that has brought Mark some solace.





Prayer cards Mark used to keep in his cell. He sent them to his cousin after her son died.

7. <u>The man Alabama would execute is not the same man it sentenced to death.</u>

Mark's transformation is not only spiritual; he is fundamentally different from the 21-year-old who was incarcerated 37 years ago.

Board-certified forensic psychologist Sara Boyd, Ph.D., who specializes in the evaluation and treatment of interpersonal violence, evaluated Mark's psychological history and current functioning. Even though Mark was legally an adult at the time of the offense, Dr. Boyd concluded that he was psychologically "immature, with incomplete brain development." As she explained, adolescence—extending into one's twenties—"is a time when situational factors, like peer influence, substance use, and emotional stress, are stronger determinants for behavior than individual characteristics like personality." For Mark, this developmental immaturity was compounded by profound trauma and intellectual disability. Dr. Boyd explained that "Mark's experiences of repeated trauma, including sexual, physical, and psychological abuse, in addition to neglect and severe attachment disruption, very likely had a profound influence on how his body and brain developed over time." His trauma history "likely delayed brain maturation processes as well

as contributed to his cognitive impairments and emotional problems at the time of the offense."

Thus, although Mark had shown kindness and love as a child, by the time of the capital offense his developmental immaturity, lifelong disability, and extensive trauma had left him particularly vulnerable to environmental pressures and severely compromised his psychological functioning. Mark was struggling to live independently, drinking alcohol heavily, and lacking stable influences.

Evaluating Mark over 35 years later, Dr. Boyd noted his dramatic transformation. "Mark's current presentation and his history are consistent with a relatively low risk of future violence, even in light of the facts of the instant offense and the severe and chronic trauma of his childhood. He has matured, developmentally, and shows markedly less impulsivity and instability than he did as an adolescent." Through this process of developmental maturation, Mark has grown psychologically. Dr. Boyd explained that the influence of situational factors diminishes with maturation and that, because of his growth, "Mark currently is not vulnerable to . . . peer influence factors in the same way" he was decades prior.

Dr. Boyd also discussed how Mark's maturation—his transformation—is reflected in his temperament, relationships, and conduct. Mark exhibits "prosocial" values and a "non-aggressive" temperament. Despite his severe trauma history, he has a "striking" "absence of dysregulated anger and bitterness"; instead, his adaptation to his trauma and disability has led to a "highly agreeable (i.e., appeasing), interpersonally submissive, and compliant attitude." His "overall excellent rule adherence" and "respectful relationships with correctional officers" exemplify his transformed attitude. Dr. Boyd commented that Mark's relationships with staff and correctional officers at Holman Prison are similar to how a "dependent child interacts with caregivers." Mark has responded to his past by "construct[ing] healthy and positive relationships with people whose values he admires and whose connections he values." Indeed, Dr. Boyd found the level of support from correctional officers remarkable: "I cannot recall another individual whom I've evaluated for a capital or other serious felony case who had two, let alone more than 60, correctional officers willing to write letters on their behalf." Ultimately, Dr. Boyd concluded that Mark is at "very low risk of general recidivism or violent recidivism."

As Dr. Boyd noted, her conclusions are borne out by the correctional officers who have observed Mark's character and conduct firsthand. Dr. Boyd emphasized Mark's genuine remorse, his ability to build and sustain healthy relationships, his commitment to treating others with kindness and respect, and his rejection of violence as evidence of his psychological maturation and stability. Mark is committed to "model[ing] for others how he hopes to be treated himself." The correctional officers noted the same qualities, observing,

for example, how consistently he treated everyone with respect and his concern for others. As Dr. Boyd concluded based on her clinical assessment, and as the correctional officers know from seeing Mark over the course of years and decades, Mark's transformation is both profound and enduring.

> *"Therefore, if anyone is in Christ, the new creation has come. The old has gone, the new is here!"* – 2 Corinthians 5:17

8. "Uncle Markie, I gotta tell you about my day!"

Despite having spent nearly 40 years in jail and prison, Mark has a community of people outside of Holman Correctional Facility who love him and care deeply about his wellbeing. Spread across the country, some of these people have known Mark since before his arrest, whereas others have only known him as a death row inmate. As one family member said, "Even though I never really got to know Mark until he was incarcerated, I will always feel close to him." Each one of these people knows about Mark's crime. They also know that Mark is more than the pain he has caused.

To them, Mark is first and foremost a brother, an uncle, a cousin, and a friend. He is someone who "tries to always call on my birthday"; is "always checking up on me to make sure I am taking my medication"; and who "asks about my dogs and is supportive of the work I do to stop animal abuse." As his friend has said, "My life will always be for the better for having Mark in it."

Many wish that Mark could play an even larger role in their lives. "If Mark was let out today, my reaction would be, 'How fast can I get the car there to pick you up?'" Another friend has said that Mark could stay in her guest room and live with her. Everyone knows that this will never happen—that Mark must remain in prison for life. But just the knowledge that he is only a phone call away is invaluable to them. "[I]t brings me so much comfort to know he's out there, that he loves me, and that he's thinking of me," said his sister.

Mark's niece will stop whatever she's doing at work to answer Mark's calls—even if it means having to work a longer shift. Mark's spiritual advisor once went as far as selling timber on his property so he could afford to speak with Mark. While being on death row makes it difficult for Mark to stay connected with others, he does what he can to demonstrate his love and gratitude. For example, Mark gave two of his nieces crosses made of thread when they traveled from California to visit him. More recently, Mark gifted a different niece a hat made from a prison uniform with a logo of his and her favorite football team, the San Francisco 49ers.

Mark also tries his best to provide for others the support, encouragement, guidance, and affection that most of us take for granted, but that he did not get as a child. For his niece's young daughter McKenzie, this means encouraging her to read for fun and to keep up her bracelet-making business. It can sometimes be hard for McKenzie's mom, Heather, to get a word in with Mark: "As soon as McKenzie hears me talking to Uncle Mark from a different room, she yells out 'Uncle Markie, I gotta tell you about my day!' and comes running." And Mark's support is not limited to the children in his family. "Uncle Mark really listens whenever I need to talk, and he tries to offer helpful advice about different things going on in my life," Heather explained. Her husband Eric confirmed that Mark "has been there for our family through ups and downs and has remained one of Heather's biggest supporters."



A bracelet that Mark's great-niece, McKenzie, made for him. Due to prison rules, McKenzie cannot give Mark the bracelet.

Whenever Mark calls, Heather gets "so scared that he's going to tell me that an execution date has been set." Like others, she hates entertaining even the possibility of Mark's execution. The mere thought of Mark's execution makes one friend "emotional just thinking about it" and gives another friend nightmares.

These feelings come from more than just a shared belief that Mark is not one of the worst of the worst for whom the death penalty is reserved—the same belief shared by the correctional officers who have seen Mark day in and day out over the decades. They also come from the very human place of not wanting to lose a loved one, even one who has caused others terrible harm.

> *"If Mark were executed, it would put a horrible hole in my heart. I get emotional just thinking about it. He doesn't deserve to be executed, and I don't know how I will manage if Alabama does take him from me."*– Vicki Blanton, friend

"I would be devastated if Mark were executed. He is someone in my life who tries to keep me healthy. It would take a big toll on my mental and emotional health if he died like that. I'm not sure how I would recover." – Pamela Montes, sister

"Our family has suffered so much already, and we couldn't bear it if Mark were executed. I would be so devastated." – Vickie Thornburg, aunt

"I lose sleep thinking about what it would be like to tell my kids that Uncle Mark is gone. I understand that he must be punished for the crime, and I do support the death penalty in some cases, but Uncle Mark doesn't deserve to be killed. I don't want to lose my family member and friend, and I don't want my kids to lose their Uncle Markie." – Heather Aide, niece

Beyond memories, these feelings and emotions would be the only thing left in place of the person who "tries to cheer me up whenever I'm feeling down," "always asks how my mom is doing," and "makes me laugh and tries to make sure I'm being taken care of." As Mark's spiritual advisor said:

"Sometimes I think the government forgets that when it executes someone, it's not just hurting that one person. It's destroying a lot of people. That's what would happen if Alabama executed Mark." – Chuck Blanton, spiritual advisor



Mark (center), pictured with his brother, Billy, and Billy's friend during a visit in 2024.

9. <u>"If there is anyone worthy of clemency, it is Mark Jenkins."</u>

Mark has repented and asked God for mercy, receiving Him in his heart. Governor Ivey, Mark now respectfully asks that you grant him mercy as well. Mark is unique. Despite a traumatic childhood marred by abuse and struggles amplified by his intellectual disability, Mark has embodied gentleness while on death row. He has worked hard to change into the person he is today—someone who lives out the Gospel and exemplifies peace, respect, and kindness. His growth and transformation remind us that no matter a person's past, faith can still take hold. This is why, in an astounding show of support, over 60 Alabama correctional officers have written letters supporting clemency for Mark, recognizing Mark's deserving character and growth. They do not do so lightly; they do so because they truly believe Mark has transformed himself and deserves this second chance. Governor Ivey, you alone have the power to commute sentences. So many who know Mark hope and pray that you will commute Mark's sentence to life in prison without the possibility of parole. We respectfully request that you show Mark mercy and grant clemency in his case.

"Because of the person he is, I am asking for mercy for Mark Jenkins. I am a very spiritual Christian man. I am praying for mercy for Mark, and I do not want to see him executed. I hope and pray that you will grant him clemency, Governor."

– [redacted]